



## CHAPTER xxviii

An Act to confer further powers on the Port of London Authority and for other purposes. [9th July 1959.]

**W**HEREAS by the Port of London Act 1908 the Port of London Authority (hereinafter referred to as "the Port Authority") were established for the purpose of administering preserving and improving the port of London and for other purposes in that Act set forth and by that Act (inter alia) the undertaking and powers of the London and India Docks Company and other undertakings and powers were transferred to and vested in the Port Authority and other powers were conferred upon the Port Authority and other provisions were made with reference to the port of London:

And whereas by various subsequent Acts and Orders further powers were conferred on the Port Authority and the Port Authority have executed divers works for the improvement of the port of London:

And whereas by the Port of London Act 1950 certain provisions of the Road Traffic Acts 1930 to 1947 were applied to dock roads as defined in that Act:

And whereas it is expedient for the better control of road traffic in the port of London that certain provisions of the Road Traffic Act 1956 should also apply to such dock roads:



And whereas it is expedient that other powers be conferred upon the Port Authority as in this Act contained and that the other provisions in this Act be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and  
collective  
titles.

1.—(1) This Act may be cited as the Port of London Act 1959.

(2) The Port of London Acts 1920 to 1958 and this Act may be cited together as the Port of London Acts 1920 to 1959.

Interpretation.

2. In this Act unless the subject or context otherwise requires—

“ the Act of 1920 ” means the Port of London (Consolidation) Act 1920;

“ the Act of 1950 ” means the Port of London Act 1950;

“ the Port Authority ” means the Port of London Authority;

“ the port fund ” means the port fund established in pursuance of the Port of London Act 1908.

Amendment of  
section 21  
of Act of  
1950.

3. Section 21 (Driving offences on dock roads) of the Act of 1950 shall have effect as if—

(a) in subsection (1) of that section after the words “ means the Road Traffic Act 1934 ” there were inserted the words “ ‘ The Act of 1956 ’ means the Road Traffic Act 1956 ” and as if instead of the figures “ 1947 ” there were inserted the figures “ 1956 ”;

(b) in subsection (3) of that section after the words “ The Act of 1934—

Section 20 (Restriction on carriage of persons on bicycles) ”

there were inserted—

“ The Act of 1956—

Section 8 (Causing death by reckless or dangerous driving of motor vehicles);

Section 9 (Punishment of persons in charge of motor vehicles when under the influence of drink or drugs);

Section 38 (Temporary signs for dealing with traffic congestion and danger) ”.



4. All constables appointed by the Port Authority in pursuance of the provisions of section 128 (Power to appoint constables) of the Act of 1920 and duly sworn in shall be exempt from serving on any jury while they shall continue to be employed as constables.

Exemption of constables from jury service.
5. Section 52 (Penalty on eluding payment of toll) of the Act of 1920 shall have effect as if the words “ or toll ” were inserted after the words “ river duty of tonnage ”.

Amendment of section 52 of Act of 1920.
6. Section 268 (Penalty for not complying with directions of harbour-masters) of the Act of 1920 as amended by sub-section (2) of section 17 of the Act of 1950 shall have effect as if the words “ given to ” were substituted for the words “ served upon ”.

Amendment of section 268 of Act of 1920.
7. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act shall be paid by the Port Authority out of the port fund.

Costs of Act.

Table of Statutes referred to in this Act

| Title                                       | Session and chapter        |
|---------------------------------------------|----------------------------|
| Port of London Act 1908 ... ..              | 8 Edw. 7 c. 68.            |
| Port of London (Consolidation) Act 1920 ... | 10 & 11 Geo. 5 c. clxxiii. |
| Port of London Act 1950 ... ..              | 14 Geo. 6 c. xxiii.        |
| Road Traffic Act 1956 ... ..                | 4 & 5 Eliz. 2 c. 67.       |



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# Port of London Act, 1959

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## ARRANGEMENT OF SECTIONS

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